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Provision of April 29, 2025

Register of provisions

n. 247 of April 29, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Dr. Claudio Filippi, acting general secretary;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code on the protection of personal data

(legislative decree June 30, 2003, n. 196), as

amended by legislative decree August 10, 2018 n. 101, containing

provisions for the adaptation of the national

legislation to the aforementioned Regulation (hereinafter

"Code");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the general

secretary pursuant to Article 15 of the Guarantor's

Regulation n. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

WHEREAS

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With the complaint received by the Authority on April 4,

2024, Mr. XX complained about receiving an

unsolicited communication via WhatsApp from

Versilmagra Immobiliare di Robertelli Davide & C.

S.a.s. (hereinafter "Company" or "Versilmagra") which, in

response to the cancellation request made

by the interested party on February 14, 2024, also

seeking a copy of any consent to

the processing of data and the related information, indicated

Realmaps S.r.l. (hereinafter also "Realmaps"

and "supplier") as the entity holding the same

data and to which to address the aforementioned

request. The company Realmaps was subject to a

separate investigation, conducted in April 2024, which

allowed the Authority to ascertain various critical issues

in the processing of personal data

intended for real estate agencies for marketing purposes

(provision n. 11 of January 16, 2025,

available at www.gpdp.it [doc. web n. 10110241]).

Considering that, from what emerged in the documents,

Versilmagra is included among the real estate agencies

to which Realmaps would have provided the data for promotional

purposes, on May 14, 2024, the Office

formulated a request for information (prot. n. 58490/24), pursuant to Article 157 of the Code, aimed mainly at clarifying the relationships with the aforementioned supplier and knowing the compliance measures in the field of personal data protection that the Company has implemented regarding the acquired lists.

In a communication dated May 23, 2024, the Company responded to the aforementioned request for information, stating that it had entered into a contract with Realmaps for the “supply of telephone numbers” registered to owners of real estate units located in the municipality of Sarzana. A copy of this contract was produced. “The [...]

Realmaps – stated the Company – has always guaranteed that such numbers” belonged to subjects “who had provided authorization for the processing of personal data (IN THE TERMS SPECIFIED IN THE CONTRACT)”. Finally, it was clarified

that, just as happened in the case of the contact with the complainant, “the company Versilmagra has never used such numbers for promotional purposes of its own company and/or its services, but exclusively to ask the user/property owner if they were interested in considering the sale of their property.” Versilmagra added that it had contacted Realmaps and the third party that would have originally acquired the data to obtain the information on the processing requested by the Office but did not receive a response.

2. THE CONTESTATION OF VIOLATIONS

By note dated June 13, 2024 (prot. n. 0072013/24), the Company was informed of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures referred to in Article 58, paragraph 2, of the Regulation, recognizing Versilmagra's responsibility for the alleged violation of the following provisions of the Regulation:

- Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 14 of the Regulation and Article 130, paragraphs 1 and 2, of the Code for failing to verify, nor document, the conditions of lawfulness of the data acquired from the supplier (information and consent);
- Articles 12, 15, 17, 21, paragraph 2, of the Regulation as the Company did not satisfy the requests for the exercise of the rights of the data subjects regarding the processing of their personal data, believing that such compliance was the responsibility of Realmaps;
- Articles 5, paragraph 2, 24 and 25 of the Regulation for failing to prove the compliance measures taken in the field of personal data protection.

3. DEFENSIVE OBSERVATIONS AND LEGAL ASSESSMENTS OF THE AUTHORITY

With communication dated July 11, 2024, the Company requested to be heard by the Authority, pursuant to Article 166, paragraph 6, of the Code and Article 13 of the internal regulation of the Guarantor No. 1/2019.

During the hearing, which took place on July 22, 2024, Versilmagra stated that it had selected the company Realmaps in the market following preliminary checks conducted on it via the Google search engine and after reading, in a reputable national newspaper, an article published on April 21, 2022, which advertised the real estate services offered by the aforementioned provider. The Company declared that it had obtained, within the framework of the commercial agreements with Realmaps, adequate guarantees regarding the processing of personal data, specifically referring to the "possibility [for Versilmagra] to receive directly all the information related to the collection of consents [...] in the event of any requests from the data subjects." Despite the premises of prompt cooperation, Realmaps "did not show collaboration at the time of fulfilling the request to exercise rights." In addition to what was stated during the hearing, the Company, with communication dated July 26, 2024, reported that it had received from Realmaps 4,501 names of which 27 subjects were contacted, including Mr. Neri who was included in a blacklist following the complaint. It finally declared that it had deleted the list received from Realmaps from its corporate systems and had not "carried out any other census activities since the report was made."

Based on the statements made by Versilmagra, for which the declarant is responsible pursuant to Article 168 of the Code, and considering the documentation produced in the defense phase, it is deemed appropriate to confirm the violations identified in the notice of contestation.

First of all, it should be noted that, contrary to what the Company asserted in its response dated May 23, 2024, the communication sent to the complainant has an unequivocally promotional purpose as it aims to propose the real estate brokerage service offered by Versilmagra to potential sellers (in this case, Mr. Neri) and to potential buyers. The described case, therefore, related to an activity of soliciting new clients via telephone, can clearly be classified among the processing activities regulated by Article 130 of the Code and having purposes not only of "sending advertising material or direct sales" but also of "conducting market research or commercial communications," as in the case of the complaint in question, for which the legal basis of the consent of the data subjects (so-called opt-in) is necessarily required (pursuant to Article 130, paragraphs 1 and 2 of the Code). The aforementioned regulation, in the formulation just reported, has effectively equated promotional communications to market research as both have a strictly commercial purpose and advantage, especially in economic terms, for the client.

That being duly clarified, Versilmagra is to be considered the data controller, pursuant to Article 4, point 7, of the Regulation, having concretely determined the purpose for which the processing was carried out (promotion of its services) and the telephone channel used for this purpose. Therefore, the same Company is directly responsible for both the obligations imposed by the regulations on personal data protection and the liability for the identified violations.

From the documents produced, it does not appear that Versilmagra, as the data controller, has provided documentation proving the existence of the legality requirements for the personal data acquired from Realmaps S.r.l. based on the guarantees offered by the latter in the contractual context. In fact, relying on such contractual guarantees and trusting in the positive outcomes of the established collaboration, there would not have been, according to the Company, the need to exercise a control power over the acquired lists and the legality of the contacts transferred as they were allegedly "consented." This gap cannot even be overcome by generically referring to the terms contained in the contract concluded with the supplier which, moreover, contains a summary description of the regulations on personal data protection (see point 7 of the contract titled "privacy") and the alleged consent to marketing given by the data subjects (see paragraph related to the "General terms and conditions of the contract and terms of use of the data sales service and database provision – mapping RealMaps S.r.l."). Nor can the complaints expressed during the telephone communication with Realmaps, of which evidence was provided in the integration of July 26, 2024, in any way exempt Versilmagra from the burden of conducting systematic sample checks on the acquired personal data.

In particular, the Company did not verify, and therefore did not prove, the provision of information to the data subjects by the original data controller who would have collected the data, pursuant to Article 14 of the Regulation; similarly, it was not proven whether the alleged consent to communication to third parties (including Versilmagra) for marketing purposes was granted by the data subjects nor, therefore, was it verified whether such authorization met the requirements of freedom and specificity (as per Article 4, point 11, of the Regulation), with inevitable repercussions on the legitimacy of the Company's promotional activities as well.

Since it is not proven...

the acquisition of free and specific prior consent for marketing, the processing in question appears to have been carried out in the absence of the prerequisites for the legitimacy of the promotional activity. Ultimately, the described processing has resulted in the execution of promotional communications without the informed consent of the data subjects, as the Company has not provided evidentiary support to document its acquisition. Therefore, the violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, and 14 of the Regulation, as well as Article 130, paragraphs 1 and 2, of the Code, must be considered confirmed, not only in relation to the case of the complaint but also in the overall processing carried out by Versilmagra concerning the data acquired from Realmaps.

Furthermore, Versilmagra has merely stated that, for the fulfillment of requests to exercise rights, data subjects are directed to Realmaps, for which an email contact is provided for potential communication. This redirection, as reconstructed by the Company, would shift the responsibility exclusively to Realmaps and, above all, would relieve Versilmagra of any informational and control obligations regarding the processing carried out in its interest, completely abdicating its role as data controller. The Company has deemed it unnecessary to provide any feedback, delegating all evaluation and verification activities regarding the processing to Realmaps, which, in turn, is required to involve the list provider that collected the data to obtain the requested information. Moreover, in this specific case, in one of the email exchanges with the complainant, the Company would have emphasized the exceptional nature of the mediation carried out by Realmaps with the list provider (see email of February 23, 2024, at 15:05), since, in general, it is the data subject themselves who must contact the latter to obtain the information concerning them; a circumstance confirmed by Realmaps itself, which, in its communication of February 22, 2024, provided the complainant with the contact details to use to reach out to the provider in order to obtain information about the processing of their personal data. In other words, the response to the data subject passes through requests that the latter is required to make to the various parties involved in the processing chain, to which they are redirected each time, resulting in a significant distraction of time and a potential delay in the registration of their will. It would have been Versilmagra's responsibility, as the data controller, to respond to the requests of the data subjects, demonstrating that it exercises full control over the processing carried out in its interest.

Therefore, for a timely "and without unjustified delay" fulfillment of the requests of the data subjects (pursuant to Article 12, paragraph 3, of the Regulation), the procedure implemented by the Company does not appear functional, as it does not allow for adequate management of the requests to exercise rights, thus confirming, in this case as well, the violation of Articles 12, 15, 17, and 21, paragraph 2, of the Regulation. The processing described above presents a picture of inadequate control and non-compliance with the rules on personal data protection. The Company has not provided elements capable of proving the lawfulness of the processing, particularly concerning the obligations of information and consent. In the absence of adequate controls over the entire processing chain (from collection to the execution of the promotional campaign), the marketing activity is in violation of Articles 5, paragraph 2, and 24 of the Regulation, which frame the responsibilities of the data controller in a perspective of necessary enhancement of the principle of accountability aimed at proving compliance with the obligations in the field of personal data protection, also taking into account the principle of privacy by design (Article 25 of the Regulation). It should be noted that even under the previous state legislation, but even more so today with the introduction of the aforementioned principles in the context of unified legislation, the provision of a contractual indemnity clause cannot exempt the data controller from carrying out the necessary activities to prove that the processing has been carried out in

compliance with the principles of lawfulness, transparency, and fairness from which the provisions on legal basis and information derive.

4. CONCLUSIONS

In light of the arguments set forth in point 3 of this provision, while acknowledging the initiatives undertaken by the Company following the Authority's contestation (inclusion of the complainant's data in the blacklist and deletion from the Company's systems of the accounts acquired from Realmaps), with regard to the processing already carried out and subject to the inspection assessment, the contested violations are confirmed, and it is necessary to:

- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the Company, should it intend to direct promotional activities in the future towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, including through adequate random checks, that personal data are processed in full compliance with the provisions in this regard (prior acquisition of free, specific, unequivocal, documented, as well as informed consent from the data subjects for the sending of commercial communications) (Articles 6, 7, and 14 of the Regulation);
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order Versilmagra to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the legislation on personal data protection and to satisfy, without unjustified delay, the related requests, including the right to object that may be raised "at any time" by the data subject.

Finally, with regard to the processing already carried out and considering the violations identified above, it is believed that the conditions exist for the application of an administrative pecuniary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

5. ORDER FOR THE IMPOSITION OF AN ADMINISTRATIVE PECUNIARY SANCTION

Based on the above, various provisions of the Regulation and the Code related to processing carried out by Versilmagra are found to be violated, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or related processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation, with the consequent application of only the sanction provided for by Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, sets the maximum penalty at the sum of 20 million euros or, for enterprises, at 4% of the worldwide annual turnover of the previous financial year if higher, specifying the methods of quantification of the aforementioned sanction which must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the related amount.

As aggravating circumstances to be considered in this case, the following must be taken into account:

1. the number of individuals involved in the processing for whom the Company was unable to demonstrate the legality requirements for the commercial activity (such as, information and consent): 4,501 the total users acquired from Realmaps (Article 83, paragraph 2, letter a of the Regulation);
2. the severity of the violations detected, particularly with regard to the absence of sample checks of the numbers to be contacted acquired from the supplier and the inadequate management of the data subjects' right to object (Article 83, paragraph 2, letter a of the Regulation);
3. the negligent nature of the conduct, given that the rules for the protection of personal data were ignored by the controller until the intervention of the Authority (Article 83, paragraph 2, letter b of the Regulation);
4. the inconsistency of the Company's conduct with the substantial regulatory activity of the Authority in the field of marketing, particularly with regard to compliance with information and consent requirements (Article 83, paragraph 2, letter k of the Regulation).

As mitigating factors, it is deemed appropriate to consider:

1. the absence of previous proceedings initiated against the Company (Article 83, paragraph 2, letter e of the Regulation);
2. the timely deletion of the lists acquired from Realmaps and the inclusion of the complainant's data in

the blacklist (Article 83, paragraph 2, letter f of the Regulation);

3. the nature of the data processed, consisting of common personal and contact data (Article 83, paragraph 2, letter g of the Regulation);

4. the degree of cooperation in the interaction with the supervisory Authority (Article 83, paragraph 2, letter f of the Regulation);

5. the overall assessment of the Company's economic capacity, taking into account the "Turnover" for 2024 related to the tax period of 2023: the Company recorded a loss equal to more than half of the turnover for the tax period of 2023 (Article 83, paragraph 2, letter k of the Regulation).

In a comprehensive perspective of necessary balancing between the rights of data subjects and business freedom, it is essential to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction.

Therefore, it is believed that - based on the overall elements mentioned above - an administrative sanction of a payment of the sum of 2,000.00 euros (two thousand/00) should be imposed on Versilmagra, equal to 0.01% of the maximum administrative penalty of 20 million euros.

In this case, it is also believed that the accessory sanction of publication on the Authority's website of this provision, provided for by Article 166, paragraph 7, of the Code and Article 16 of the Regulation of the Authority No. 1/2019, should be applied.

In implementation of the principles set forth in Article 83 of the Regulation, Regulation, the imposition of such an accessory sanction appears proportionate in relation to the severity and particular disvalue of the conduct subject to censure, with specific reference to the absence of adequate controls on the lists acquired from third parties and on the related obligations of information and consent of the data subjects for the processing of data for promotional purposes. This is regardless of the actual contacts made, as even the mere collection of the data just described, although not usable, constitutes processing carried out in violation of the data protection regulations, resulting in a significant assessment of the disvalue of the conduct itself.

It is reminded that, pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition order on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same order, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation is also applied administratively.

Finally, the prerequisites of Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Guarantor, for the annotation of the violations detected here in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, are met.

ALL OF THE ABOVE PREMISED, THE GUARANTOR

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares the processing described in the terms of the motivation carried out by Versilmagra Immobiliare di Robertelli Davide & C. S.a.s., based in via Variante Aurelia 195, 19038 Sarzana (SP), VAT No. 01342120118; consequently:

a) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the Company, should it intend to direct promotional activity in the future towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, also through adequate sample checks, that personal data are processed in full compliance with the provisions in this regard (prior acquisition of free, specific, unequivocal, documented, as well as informed consent from the data subjects for sending commercial communications) (Articles 6, 7, and 14 of the Regulation);

b) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders Versilmagra to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the data protection regulations and to satisfy, without unjustified delay, the related requests, including the right to object which may be raised "at any time" by the data subject;

c) pursuant to Article 157 of the Code, orders Versilmagra to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the imposed measure; any failure to comply with the provisions of this point may result in the application of the

administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Versilmagra Immobiliare di Robertelli Davide & C. S.a.s., in the person of its legal representative, to pay the sum of €2,000.00 (two thousand) as an administrative pecuniary sanction for the violations indicated in the motivation;

it is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €2,000.00 (two thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

a) pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019, the publication of this provision as well as, pursuant to Article 166, paragraph 7, of the Code, the publication of this injunction order on the Guarantor's website;

b) pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, orders the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be made to the ordinary judicial authority, with an application filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the applicant resides abroad.

Rome, April 29, 2025

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE ACTING SECRETARY GENERAL

Filippi